

**IN THE SUPREME COURT OF BANGLADESH
HIGH COURT DIVISION
(Civil Appellate Jurisdiction)**

First Miscellaneous Appeal No. 252 of 2024

In the matter of:

Nilufer Farid

... Appellant

-Versus-

Farid Uddin Khan

... Respondents

Mr. Saqeb Mahbub, Advocate with

Mr. M. Sabbir Ahmed, Advocate

... For the appellant

None appears

.... For the respondent

Heard on 17.03.2025

and Judgment on 18.03.2025

Present:

Mr. Justice Md. Mozibur Rahman Miah

And

Mr. Justice Md. Bashir Ullah

Md. Mozibur Rahman Miah, J.

At the instance of the petitioner in case no. 27 of 2024, (যাট আইন মোকদ্দমা নং ২৭/২০২৪) this appeal is directed against the judgment and order dated 05.09.2024 passed by the learned District Judge, Dhaka rejecting an application filed by the appellant as petitioner under section 20, 21 and 22 of “Mental Health Act, 2018,” (মানসিক স্বাস্থ্য আইন, ২০১৮) rejecting the application filed for appointing a medical officer for assessing the mental state of the victim, Rumana Farid as well as to appoint the petitioner as her guardian to maintain the movable and immovable property of the victim to ensure her long term and expensive medical treatment seeking following reliefs:

অতএব, হুজুর সমী-প প্রার্থনা-ন্যায় ও সুবিচা-রর স্বার্থ
 দরখাস্তকারীর কন্যা রুমানা ফরিদ এর মানসিক অবস্থার নিরূপণ ও
 স্থাবর ও অস্থাবর সম্পত্তির যথাঅভাবে রক্ষণাবেক্ষণ ও সুচারুরূপে
 পরিচালনা ক-র অসুস্থ ভিকটি-মর ব্যয়বহুল দীর্ঘ মেয়াদী সুচিকিৎসা নিশ্চিত
 করণের লক্ষ্যে বিজ্ঞ আদালত কর্তৃক ভিকটিমের শরীরের অভিভাবক
 প্রার্থী দরখাস্তকারীকে ভিকটিমের সম্পত্তির অভিভাবক/ পরিচালক নিযুক্তির
 আ-দশদা-ন এবং অতিক্রান্ত ভিকটিমের মানসিক অবস্থা নিরূপনে প্রয়োজনীয়
 ব্যবস্থা গ্রহণে বিজ্ঞ আদালতের সদয় মর্জি হয়।

The case of the petitioner so stated in the application filed under section 20, 21 and 22 of মানসিক স্বাস্থ্য আইন, ২০১৮ in succinct is that the victim, (the person afflicted with mental illness, মানসিক অসুস্থতায় আক্রান্ত ব্যক্তি), Rumana Farid was born on 10.12.1977 to the parents of petitioner and opposite party no. 1. At the time of her birth, the petitioner had to undergo forcep procedure for which the brain function of the victim was severely impaired resulting in, from the very beginning of her birth, she could not lead a normal life and since then she has been suffering from severe respiratory disorder and has been going through a long term medical treatment. Subsequently, the said victim was married off in the year 1996 to one, Ehatashamul Hoque and out of the wedlock a daughter named, Samrin Hoque was born whose present age is 21 years. For causing damages to the brain of the victim, she has also been suffering from Cerebral palsy and for all those disorders, the mental health of the victim started deteriorating day by day and her cognitive function has also been seriously declining. It has further been stated that soon after getting married, her husband started leading an immoral life and showing apathy to

maintain, her (victim) and their daughter, and involved herself (husband of the victim) in various criminal offence consequence of which he was even imprisoned for different terms. Given the above painful trajectory of life the victim navigating, the petitioners has to bears all the expenses for her livelihood. It has also been stated that since the victim has to receive various kinds of expensive treatment since her born, the present petitioner and her husband, the opposite party no. 1 has to incur a substantial amount for her treatment though no tengable improvement is forthcoming. It has been further stated that, despite all the endeavors taken by the petitioner and her husband for the wellbeing of the victim, both physically and mentally, yet the treatment cost is going unbearable for them and for that obvious reason, the mental state of the victim is required to be assessed by a medical officer having specialization in that filed first to take recourse of subsequent measures as enshrined in the statute and hence the said application.

The learned District Judge after taking into consideration of the application then vide order dated 09.05.2024 as well as 19.06.2024 registered the said application as case no. 27 of 2024 and admitted it for hearing. However, the said application was ultimately taken up for hearing and the learned District Judge vide impugned order dated 04.07.2024 rejected the same holding that section 21(1) of the said Ain has empowered father and mother as guardian for the victim, having no reason to appoint the petitioner as guardian. The learned judge also held that, since there has been no provision in the Ain, to maintain the cost of

the treatment of the victim out of her own property, so it is not necessary to seek permission of the court to that effect.

Being aggrieved by and dissatisfied with the said order rejecting the application of the petitioner, the petitioner as appellant preferred this appeal.

Mr. Saqeb Mahbub, the learned counsel appearing for the appellant by filing an “application for submission of additional document” as well as by referring the impugned judgment and order, at the very outset submits that the petitioner ought to have filed the application only under section 20 of the মানসিক স্বাস্থ্য আইন, ২০১৮ but misconceivedly added section 21 and 22 in the said application of the Ain yet the learned District Judge has misappreciated the application of section 20 of the Ain because until and unless the mental health of the victim (though the learned counsel hesitates to use the word “victim”) is assessed or evaluated no remedy provided in section 21 and 22 of the Ain can be sought but the learned District Judge has failed to comprehend the true import of the proposition delineates in section 20 of the Ain and the impugned order is thus liable to be set aside.

The learned counsel further contends that, in the prayer of the application filed under sections 20-22 of the Ain, no permission has ever been sought by the petitioner, to transfer the property of the victim yet the learned judge has very whimsically rejected the applicant finding that there has been no provision in the Ain, to seek permission to dispose of the property of the victim.

The learned counsel wrapped of his submission contending that, until and unless the mental state of the victim is assessed by a medical officer as postulated in section 20(2)(3) of the Ain, future welfare of the victim can not be taken by her guardian as provided in section 21 and 22 of the Ain but the learned judge has failed to appreciate that very legal proposition while rejecting the application.

Record shows, notice of this appeal has duly been served upon the respondent but none represented.

Be that as it may, we have considered the submission advanced by the learned counsel for the appellant and perused the memo of appeal including the impugned judgment and order and all the documents appended with the application for 'submission additional document'. At the very outset of dwelling on the merit of the impugned order we express our optimism for enacting such a benevolent legislature keeping in mind of the helplessness of the parents of their special child which remains the only pain of such hapless parents so long they live. So, we as a member of judiciary should deal with such touchy matter humanly not in a capricious manner which unfortunately happened in the case in hand. However in the impugned order we don't find any iota of such averment as the learned District Judge has not applied his judicial mind in not finding the application has not only been filed under sections 21 and 22 rather section 20 of the Ain, 2018 as well. Because section 20 is the substantive one as if a medical officer is not appointed to evaluate the mental state of a victim/ person with disability (Annexure 'B' to the application for permission of additional document's bears the testimony)

then subsequent step can not be taken by her guardian (গার্ডিয়ান) for the welfare of the victim. So, first and foremost duty of a guardian to pray for assessing the mental state of a person with disability which the petitioner has rightly discharged but the learned District Judge without comprehending the gravity of the provision of section 20 of the Ain, put emphasis on some extraneous matter while rejecting the application. On top of that, in the four corner of the application filed under sections 20-22 of the Ain, the petitioner has never sought to sell the property of the victim. Because, a person of ordinary prudence can assume ‘a person with disability’ can never hold or inherit any property left by their parents during the life time of his/her parents. As we observed in the penultimate paragraph that envisioning the cruel destiny of such kind of special child, given our social perception towards the victim and anticipating that nobody will be there to take care of them after their (parents) demise and for such obvious reason, evaluation of mental state of such person with disability is a must. But the reason assigned by the learned District Judge while rejecting the application clearly exemplifies his non application of judicial mind which is undesirable.

Regard being had to the above facts and circumstances we don’t find any shred of merit in the impugned judgment and order which is liable to be set aside.

Resultantly, the appeal is allowed however without any order as to costs.

The impugned judgment and order dated 05.09.2024 passed by the learned District Judge, Dhaka in Case No. 27 of 2024 stands set aside.

However, the learned District Judge, Dhaka is hereby directed to hear the application filed under section 20,21,22 of the Ain, afresh and dispose of the same considering the same to have filed only under section 20 of the মানসিক স্বাস্থ্য আইন, ২০১৮ within a period of 30(thirty) days from the date of receipt of the copy of this order.

Let a copy of this order be communicated to the court concerned forthwith.

Md. Bashir Ullah, J.

I agree.